Complaints Policy

What is its purpose?
Squaricle Group are committed to providing a high quality, fair and inclusive learning experience for all our clients and learners, but we recognise that on occasion, individuals may feel we have not delivered this, and as such may want to lodge a complaint with us about their experience. This policy outlines our approach to this, and the fair and impartial process we follow when dealing with complaints.

Why is it important to us?
Squaricle Group are committed to dealing with all complaints fairly and impartially, and to providing a high quality service to those who complain, and it is important to us that we are consistent in our processes. We will not normally limit the contact complainants have with our organisation. However, we do not expect our staff to tolerate unacceptable or unreasonable behaviour and will take action to protect staff from that behaviour, including that which is abusive, offensive or threatening. Further details on what we believe to be unreasonable behaviour and the impact on complaints related processes is detailed in this policy.

Why is it important to our clients and learners?
This policy provides our clients and learners assurance that we take complaints seriously, and deal with them appropriately.

Who within the organisation does it apply to?

This policy covers all complaints from clients and learners about any provision of services by Squaricle Group. Complaints dealt with under other procedures are indicated below:

- Any safeguarding concern, allegation of abuse, or concern that a child, young person or adult at risk may be at immediate risk of harm must be escalated immediately under the Safeguarding Policy. The complaints process must not delay safeguarding action, referral to statutory agencies, or contact with emergency services where required
- Whistleblowing: We have an internal Whistleblowing Policy for all employees.
- Employee grievances: We have a Grievance Procedure for all employees.
- Employee conduct: Where a complaint raises employee conduct issues, these may be considered under the Disciplinary Procedure. The complainant will be informed of the complaint outcome as far as appropriate, but Squaricle Group will not disclose confidential employment, disciplinary or personal data relating to employees or associates
- Where a complaint relates to personal data, information rights, privacy, data security, subject access, erasure or another data protection matter, it will be handled in line with Squaricle Group's Data Protection Policy and the UK GDPR/Data Protection Act

2018. Complainants may also have the right to raise concerns with the Information Commissioner's Office

- NB: If other bodies are investigating aspects of the complaint, for example the police, local authority (LA) safeguarding teams or Tribunals, this may impact on our ability to adhere to the timescales within this policy or result in processes being suspended until those public bodies have completed their investigations. If a complainant commences legal action against Squaricle Group in relation to their complaint, we will consider whether to suspend the complaints procedure in relation to their complaint until those legal proceedings have concluded.

When will it be effective from?
August 2021

What are our responsibilities and accountabilities?

Definitions
The difference between a concern and a complaint**:**

- A concern may be defined as '*an expression of worry or doubt over an issue considered to be important for which reassurances are sought'*.
- A complaint may be defined as '*an expression of dissatisfaction however made, about actions taken or a lack of action*'.

It is in everyone's interest that concerns and complaints are resolved at the earliest possible stage. Many issues can be resolved informally, without the need to use the formal stages of the complaints procedure. Squaricle Group takes concerns seriously and will make every effort to resolve the matter as quickly as possible.
If you have difficulty discussing a concern with a particular employee, we will respect your views. In these cases, the Director of Operations: Brands, People & Quality will refer you to another staff member. Similarly, if the employee directly involved feels unable to deal with a concern, they will refer you to a colleague. The employee may be more senior but does not have to be. The ability to consider the concern objectively and impartially is more important.
We understand however, that there are occasions when people would like to raise their concerns formally. In this case, Squaricle Group will attempt to resolve the issue internally, through the stages outlined within this complaints policy.

How to raise a concern or make a complaint

- A concern or complaint can be made in person, in writing or by telephone. They may also be made by a third party acting on behalf on a complainant, as long as they have appropriate consent to do so.
- Concerns should be raised with the Head of department relating to the concern. If the issue remains unresolved, the next step is to make a formal complaint.

- Complainants should not approach the Squaricle Group Managing Director (except in the circumstance detailed below) to raise concerns or complaints. as it may prevent them from considering complaints at Stage 2 of the procedure.
- Complaints against Squaricle Group employees or associates should be made in the first instance, to the Director of Operations: Brands, People & Quality who can be reached at Roxy@squariclegroup.com. Please mark them as Private & Confidential.
- Complaints that involve or are about the Director of Operations: Brands, People & Quality should be addressed to the Group Managing Director who can be reached at Justin@squariclegroup.com Please mark them as Private & Confidential.
- For ease of use, a template complaint form is included in this policy document. If you require help in completing the form, please contact hello@squariclegroup.com. You can also ask third party organisations like the Citizens Advice to help you.
- In accordance with equality law, we will consider making reasonable adjustments if required, to enable complainants to access and complete this complaints procedure. For instance, providing information in alternative formats, assisting complainants in raising a formal complaint or holding meetings in accessible locations. If you require any information in an alternative format please contact hello@squariclegroup.com or call our offices on 01732 495925
- Anonymous complaints: We will not normally investigate anonymous complaints. However, we will consider anonymous complaints where there is sufficient information to enable investigation, particularly where safeguarding or serious misconduct may be involved.
- Timescales: You must raise the complaint within three months of the incident or, where a series of associated incidents have occurred, within three months of the last of these incidents. We will consider complaints made outside of this time frame if exceptional circumstances apply.
- Withdrawal of a Complaint: If a complainant wants to withdraw their complaint, we will ask them to confirm this in writing.

Resolving complaints

- At each stage in the procedure, Squaricle Group want to resolve the complaint. If appropriate, we will acknowledge that the complaint is upheld in whole or in part. In addition, we may offer one or more of the following:
    - an explanation
    - an admission that the situation could have been handled differently or better
    - an assurance that we will try to ensure the event complained of will not recur
    - an explanation of the steps that have been or will be taken to help ensure that it will not happen again and an indication of the timescales within which any changes will be made
    - an undertaking to review Squaricle Group policies in light of the complaint
    - an apology.

Stage 1:

- Formal complaints must be made to the Director of Operations: Brands, People & Quality (unless they are about the Director of Operations: Brands, People & Quality– see above). This may be done in person, in writing (preferably on the Complaint Form), or by telephone.
- The Director of Operations: Brands, People & Quality will record the date the complaint is received and will acknowledge receipt of the complaint in writing (either by letter or email) within 10 working days.
- Within this response, the Director of Operations: Brands, People & Quality will seek to clarify the nature of the complaint, ask what remains unresolved and what outcome the complainant would like to see. The Director of Operations: Brands, People & Quality can consider whether a face to face meeting is the most appropriate way of doing this.
- *Note: The Director of Operations: Brands, People & Quality may delegate the investigation to another member of Squaricle Group's leadership team but not the decision to be taken.*
- During the investigation, the Director of Operations: Brands, People & Quality (or investigator) will:
    - if necessary, interview those involved in the matter and/or those complained of, allowing them to be accompanied if they wish
    - keep a written record of any meetings/interviews in relation to their investigation
- At the conclusion of the investigation, the Director of Operations: Brands, People & Quality will provide a formal written response within 30 days of the date of receipt of the complaint.
- If the Director of Operations: Brands, People & Quality is unable to meet this deadline, they will provide the complainant with an update and revised response date.
- The response will detail any actions taken to investigate the complaint and provide a full explanation of the decision made and the reason(s) for it. Where appropriate, it will include details of actions Squaricle Group will take to resolve the complaint.
- The Director of Operations: Brands, People & Quality will advise the complainant of how to escalate their complaint should they remain dissatisfied with the outcome of Stage 1.
- If the complaint is about the Director of Operations: Brands, People & Quality, the Group Managing Director will complete all the actions at Stage 1.
- If the complaint is:
    - Jointly about the Director of Operations: Brands, People & Quality and the Group Managing Director then Stage 1 an independent investigator appointed

by Squaricle Group's shareholders. At the conclusion of their investigation, the independent investigator will provide a formal written response.

Stage 2

- If the complainant is dissatisfied with the outcome at Stage 1 and wishes to take the matter further, they can escalate the complaint to Stage 2 – a meeting with members of Squaricle Group's Board of Directors. This is the final stage of the complaints procedure.
- A request to escalate to Stage 2 must be made to the Group Managing Director, within 10 working days of receipt of the Stage 1 response. The Group Managing Director will record the date the escalation request is received and acknowledge receipt of it in writing (either by letter or email) within 10 working days.
- Requests received outside of this time frame will only be considered if exceptional circumstances apply.
- The Group Managing Director will write to the complainant to inform them of the date of the meeting. They will aim to convene a meeting within 15 working days of receipt of the Stage 2 request. If this is not possible, the Group Managing Director will provide an anticipated date and keep the complainant informed.
- If the complainant rejects the offer of three proposed dates, without good reason, the Group Managing Director will decide when to hold the meeting. It will then proceed in the complainant's absence on the basis of written submissions from both parties.
- The committee will decide whether to deal with the complaint by inviting parties to a meeting or through written representations, but in making their decision they will be sensitive to the complainant's needs.
- If the complainant is invited to attend the meeting, they may bring someone along to provide support. This can be a relative or friend. Generally, we do not encourage either party to bring legal representatives to the committee meeting. However, there may be occasions when legal representation is appropriate.
- Representatives from the media are not permitted to attend.
- At least 7 working days before the meeting, the Group Managing Director will:
    - confirm and notify the complainant of the date, time and venue of the meeting, ensuring that, if the complainant is invited, the dates are convenient to all parties and that the venue and proceedings are accessible
    - request copies of any further written material to be submitted to the committee at least 5 working days before the meeting.
- Any written material will be circulated to all parties at least 2 working days before the date of the meeting. The committee will not normally accept, as evidence, recordings of conversations that were obtained covertly and without the informed consent of all parties being recorded.
- The committee will also not review any new complaints at this stage or consider evidence unrelated to the initial complaint to be included. New complaints must be dealt with from Stage 1 of the procedure.
- The meeting will be held in private. Electronic recordings of meetings or conversations are not normally permitted unless a complainant's own disability or

special needs require it. Prior knowledge and consent of all parties attending must be sought before meetings or conversations take place. Consent will be recorded in any minutes taken.

- The committee will consider the complaint and all the evidence presented. The committee can:
    - uphold the complaint in whole or in part
    - dismiss the complaint in whole or in part.
- If the complaint is upheld in whole or in part, the committee will:
    - decide on the appropriate action to be taken to resolve the complaint
    - where appropriate, recommend changes to Squaricle Group systems or procedures to prevent similar issues in the future.
- The Chair of the Committee will provide the complainant and Squaricle Group with a full explanation of their decision and the reason(s) for it, in writing, within 10 working days.
- If the complaint is:
    - Jointly about the Director of Operations: Brands, People & Quality and the Group Managing Director then Stage 2 will be heard by a committee of independent directors appointed by Squaricle Group's shareholders.
- The response will detail any actions taken to investigate the complaint and provide a full explanation of the decision made and the reason(s) for it. Where appropriate, it will include details of actions Squaricle Group will take to resolve the complaint.

Roles & Responsibilities

Complainant:

The complainant will receive a more effective response to the complaint if they:

- explain the complaint in full as early as possible
- co-operate with Squaricle Group in seeking a solution to the complaint
- respond promptly to requests for information or meetings or in agreeing the details of the complaint
- ask for assistance as needed
- treat all those involved in the complaint with respect
- refrain from publicising the details of their complaint on social media and respect confidentiality.

Investigator:

The investigator's role is to establish the facts relevant to the complaint by:

- providing a comprehensive, open, transparent and fair consideration of the complaint through:
    - sensitive and thorough interviewing of the complainant to establish what has happened and who has been involved
    - interviewing employees / learners and other people relevant to the complaint
    - consideration of records and other relevant information

- analysing information
- liaising with the complainant to clarify what the complainant feels would put things right.

The investigator should:

- conduct interviews with an open mind and be prepared to persist in the questioning
- keep notes of interviews or arrange for an independent note taker to record minutes of the meeting
- ensure that any papers produced during the investigation are kept securely pending any appeal
- be mindful of the timescales to respond
- prepare a comprehensive report for Director of Operations: Brands, People & Quality / Group Managing Director or complaints committee that sets out the facts, identifies solutions and recommends courses of action to resolve problems.
- The Director of Operations: Brands, People & Quality / Group Managing Director or complaints committee will then determine whether to uphold or dismiss the complaint and communicate that decision to the complainant, providing the appropriate escalation details.

Director of Operations: Brands, People & Quality:

NB: If the complaint is regarding the Director of Operations: Brands, People & Quality, the Group Managing Director will undertake the responsibilities of this role.
The Director of Operations: Brands, People & Quality is the contact point for the complainant and should:

- ensure that all people involved in the complaint procedure are aware of their legal rights and duties, including any under legislation relating to the Equality Act 2010, the Freedom of Information Act 2000, the Data Protection Act (DPA) 2018 and UK GDPR.
- set the date, time and venue of the meeting, ensuring that the dates are convenient to all parties (if they are invited to attend) and that the venue and proceedings are accessible
- collate any written material relevant to the complaint (for example; stage 1 paperwork, Squaricle Group and complainant submissions) and send it to the parties in advance of the meeting within an agreed timescale
- arrange for a record of the proceedings to be taken
- circulate the minutes of the meeting
- notify all parties of the committee's decision.

Committee Chair:
The committee's chair, who is nominated in advance of the complaint meeting, should ensure that:

- both parties are asked to provide any additional information relating to the complaint by a specified date in advance of the meeting
- the meeting is conducted in an informal manner, is not adversarial, and that, if all parties are invited to attend, everyone is treated with respect and courtesy
- complainants who may not be used to speaking at such a meeting are put at ease. This is particularly important if the complainant is a child/young person
- the remit of the committee is explained to the complainant
- written material is seen by everyone in attendance, provided it does not breach confidentiality or any individual's rights to privacy under the DPA 2018 or GDPR.
- If a new issue arises it would be useful to give everyone the opportunity to consider and comment upon it; this may require a short adjournment of the meeting
- both the complainant and Squaricle Group are given the opportunity to make their case and seek clarity, either through written submissions ahead of the meeting or verbally in the meeting itself
- the issues are addressed
- key findings of fact are made
- the committee is open-minded and acts independently
- no member of the committee has an external interest in the outcome of the proceedings or any involvement in an earlier stage of the procedure
- the meeting is minuted

Committee Member:
Committee members should be aware that:

- the meeting must be independent and impartial, and should be seen to be so
- No Director may sit on the committee if they have had a prior involvement in the complaint or in the circumstances surrounding it.
- the aim of the meeting should be to resolve the complaint and achieve reconciliation between Squaricle Group and the complainant
- We recognise that the complainant might not be satisfied with the outcome if the meeting does not find in their favour. It may only be possible to establish the facts and make recommendations.
- many complainants will feel nervous and inhibited in a formal setting
- Parents/carers often feel emotional when discussing an issue that affects their child.
- extra care needs to be taken when the complainant is a child/young person and present during all or part of the meeting
- Careful consideration of the atmosphere and proceedings should ensure that the child/young person does not feel intimidated.
- The committee should respect the views of the child/young person and give them equal consideration to those of adults.
- If the child/young person is the complainant, the committee should ask in advance if any support is needed to help them present their complaint. Where the child/young person's

parent is the complainant, the committee should give the parent the opportunity to say which parts of the meeting, if any, the child/young person needs to attend.
- However, the parent should be advised that agreement might not always be possible if the parent wishes the child/young person to attend a part of the meeting that the committee considers is not in the child/young person's best interests.
- the welfare of the child/young person is paramount.

Unreasonable Behaviour which may impact the Complaints Process:

Squaricle Group defines unreasonable behaviour as that which hinders our consideration of complaints because of the frequency or nature of the complainant's contact with us, such as, if the complainant:

- refuses to articulate their complaint or specify the grounds of a complaint or the outcomes sought by raising the complaint, despite offers of assistance
- refuses to co-operate with the complaints investigation process
- refuses to accept that certain issues are not within the scope of the complaints procedure
- insists on the complaint being dealt with in ways which are incompatible with the complaints procedure or with good practice
- introduces trivial or irrelevant information which they expect to be taken into account and commented on
- raises large numbers of detailed but unimportant questions, and insists they are fully answered, often immediately and to their own timescales
- makes unjustified complaints about employees who are trying to deal with the issues, and seeks to have them replaced
- changes the basis of the complaint as the investigation proceeds
- repeatedly makes the same complaint (despite previous investigations or responses concluding that the complaint is groundless or has been addressed)
- refuses to accept the findings of the investigation into that complaint where Squaricle Group's complaints procedure has been fully and properly implemented and completed
- seeks an unrealistic outcome
- makes excessive demands on Squaricle Group time by frequent, lengthy and complicated contact with employees regarding the complaint in person, in writing, by email and by telephone while the complaint is being dealt with
- uses threats to intimidate
- uses abusive, offensive or discriminatory language or violence
- knowingly provides falsified information
- publishes information on social media or public forums that is abusive, threatening, discriminatory, knowingly false, defamatory, or unlawfully discloses confidential or

personal information.

Complainants should try to limit their communication with Squaricle Group that relates to their complaint, while the complaint is being progressed. It is not helpful if repeated correspondence is sent (either by letter, phone, email or text), as it could delay the outcome being reached.

Whenever possible, the Director of Operations: Brands, People & Quality will discuss any concerns with the complainant informally before applying an '*unreasonable'* marking.

If the behaviour continues, the Director of Operations: Brands, People & Quality will write to the complainant explaining that their behaviour is unreasonable and ask them to change it. For complainants who excessively contact Squaricle Group, causing a significant level of disruption, we may specify methods of communication and limit the number of contacts in a communication plan. This will be reviewed after six months.

In response to serious aggression, violence, threats or safeguarding risk, Squaricle Group may take proportionate protective steps, which may include contacting the police, restricting contact methods, or restricting access to premises or services. Any restriction will be documented, reviewed and applied in a way that considers equality, safeguarding and contractual obligations.

Related documents and procedures
Squaricle Group Safeguarding Policy
Squaricle Group Whistleblowing Policy
Squaricle Group Grievance Policy
Squaricle Group Disciplinary Procedure

Governance
The Squaricle Group Board have overall responsibility for the implementation of this policy.

Complaint Form

Please complete and return to Roxy@squariclegroup.com who will acknowledge receipt and explain what action will be taken.
Information provided in this form will be used to assess, investigate and respond to the complaint, maintain complaint records, improve services and comply with legal obligations. Information will be shared only with those who need it for these purposes, unless safeguarding, legal or regulatory obligations require wider disclosure

Your name:
Learner's name (if relevant):
Your relationship to the learner (if relevant):
Please provide your preferred contact details. Squaricle Group will only request information necessary to understand, investigate and respond to your complaint.
Please give details of your complaint, including whether you have spoken to anybody at Squaricle Group about it.

What actions do you feel might resolve the problem at this stage?
Are you attaching any paperwork? If so, please give details.
Signature: **Date:**
Official use
Date acknowledgement sent:
By who:

Complaint referred to:
Date: